

24STCV04422 24STCV04422

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Case Number: 24STCV04422 Hearing Date: September 15, 2026 Dept: 514

Cucco v. Hayworth Villas Homeowners'
Association

24STCV04422

Plaintiff's Motion for Leave to File Second Amended Supplemental Complaint

Tentative Ruling

The motion is granted.

Plaintiff Carly Cucco ("Plaintiff") filed the complaint in this action on February 21, 2024, and the First Amended Complaint (the "FAC") on July 25, 2025. In the FAC, Plaintiff alleges that she is an owner of a condominium in a complex managed by Defendant Hayworth Villas Homeowner's Association ("Defendant") and that her unit was damaged by water leaks on two occasions, one in or around August 2021 and a second in or around August 2023.

On August 19, 2026, Plaintiff filed this motion for leave to file a Second Amended Supplemental Complaint alleging new causes of action based on additional water damage to her unit allegedly caused by a third leak occurring in or before April 2026.

Defendant filed an opposition on September 1, and Plaintiff filed a reply on September 8.

Code of Civil Procedure section 473,

subdivision (a)(1) provides, in relevant part:

“The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.”

Code of Civil Procedure section 464,
subdivision (a) provides:

“The plaintiff and defendant, respectively, may be allowed, on motion, to make a supplemental complaint or answer, alleging facts material to the case occurring after the former complaint or answer.”

The Court understands that different leaks at different times are involved, and each leak may well arise out of its own facts and circumstances. Nonetheless, the Court finds that good cause has been shown and that the supplemental complaint is in furtherance of and consistent with the FAC.

There is no showing of undue or unfair prejudice to Defendant. Trial is currently set for May 10, 2027. Defendant has ample time to conduct discovery

relating to the new allegations (and if additional time is needed, Defendant may seek a continuance of trial based upon good cause shown).

The Court GRANTS
the motion of Plaintiff Carly Cucco for leave to file the Second Amended Supplemental Complaint.

The Court GRANTS Plaintiff LEAVE to file the
Second Amended Supplemental Complaint attached to the motion by no later than
September 22, 2026.

Defendant may file an answer or other responsive
pleading to the Second Amended Supplemental Complaint within 30 days of
service.

Moving Party is ordered to give notice.